

		Ford moves to tax \$500 in witness fees for a cancelled vehicle inspection on the ground Plaintiff provides no explanation of how the flat fee was calculated, what it represents, or how it was “reasonably necessary” to the litigation. Plaintiff contends the cancellation was due to Ford’s expert failing to appear and Plaintiff making herself and her expert available for a rescheduled inspection. (Zakharian Decl., ¶ 30.) Plaintiff demonstrates the \$500 cancellation charge was paid in full and was an actual litigation expense arising from a scheduled expert inspection. (Zakharian Decl., ¶ 29.) The Court DENIES the request to tax Item No. 8b(5) in the amount of \$500.00.
5	Madani vs. 2900 & 2910 E. Miraloma Ave. LLC. 2025-01482955 Motion for Leave to File Amended Cross-Complaint	Defendant/cross-complainant 2900 & 2910 E. Miraloma Avenue LLC’s (Miraloma) Motion for Leave to File an Amended Cross-Complaint is GRANTED. “A party against whom a cause of action has been asserted in a complaint or cross-complaint may file a cross-complaint setting forth . . . [a]ny cause of action he has against a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him.” (Code Civ. Proc., § 428.10.) “[D]efendants may cross-complain against any person from whom they seek equitable indemnity. Defendants need only allege that the harm for which they are being sued is attributable, at least in part, to the cross-defendant.” (Weil & Brown, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025) Pleadings § 6:529, citations omitted.) “Cross-complaints for comparative equitable indemnity would appear virtually always transactionally related to the main action.” (<i>Time for Living, Inc. v. Guy Hatfield Homes/All American Development Co.</i> (1991) 230 Cal.App.3d 30, 38.) Leave to file a cross complaint “may be granted in the interest of justice at any time during the course of the action.” (Code Civ. Proc., § 428.50, subd. (c).) Analysis Miraloma seeks leave to file a cross-complaint against Towman Towing, Inc. (Towman).

	Miraloma's proposed amended cross-complaint brings causes of action for express indemnity, total equitable indemnity, partial equitable indemnity, contribution and repayment, and declaratory relief. (Ex. 2 (Proposed (Prop.) FACC.) Miraloma alleges it entered into a lease with Towman prior to the date of Plaintiff's alleged injuries with respect to the premises at issue. (Proposed (Prop.) FACC ¶ 7.) Miraloma alleges the agreement provides Towman will defend, indemnify and hold harmless Miraloma from suits such as the instant one. (Prop. FACC ¶ 7.) Miraloma further alleges Towman has been placed on notice of claim but has refused to indemnify and defend Miraloma. (Prop. FACC ¶ 7.) Miraloma's proposed amended cross-complaint arises out of the same transactions or occurrences as those alleged in Plaintiff's complaint as Miraloma contends the agreement it had with Towman provides Towman will defend, indemnify and hold harmless Miraloma from suits such as Plaintiff's. Plaintiff contends Miraloma has not demonstrated amendment is warranted in the interest of justice under Code of Civil Procedure section 428.50, subdivision (c) as the proposed amendment is based on a lease Miraloma had before Plaintiff's injury and Miraloma has not explained why Towman was not pursued earlier. Plaintiff also contends Miraloma has not stated when tender was made to Towman and when any refusal occurred. Finally, Plaintiff contends that granting leave would expand and delay the action. Miraloma filed its original cross-complaint on 7/3/25. Miraloma contends on 4/26/26, it conducted the deposition of Angela Sparks. The deposition questions centered on whether the tenant or the landlord is responsible for inspecting and repairing areas between the ceiling and roof, particularly following water damage that affected plywood. Sparks stated tenant responsibilities include notifying management of issues, while the ultimate responsibility depends on the lease agreement's terms. Sparks testified the lease limited Miraloma's responsibility to areas such as the roof and the foundation. Based on Sparks' testimony, a determination was made that Towman should be joined. The proposed amended cross-complaint sufficiently alleges for purposes of this motion that Towman has been placed on notice of claim but has refused to indemnify and defend Miraloma. (Prop. FACC ¶ 7.) On reply, Miraloma
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		also demonstrated that on 4/21/26, it made a tender of the defense to Towman. (Sargenti Decl., ¶ 3, Ex. 1.) Finally, as the causes of action for indemnity and contribution focus primarily on responsibility for Plaintiff's alleged damages, the proposed amended cross-complaint would not greatly expand the facts and issues regarding the underlying incident. Miraloma is ORDERED to file the First Amended Cross-complaint within five days.
6	Martinez vs. Jimenez 2023-01365732 Motion to be Relieved as Counsel	The motion of attorney Yuri Voronin of Wade Litigation, APC to withdraw as attorney of record for defendant Joseph Jimenez is GRANTED. (Code Civ. Proc. § 284, CRC 3.1362.) Attorney will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on client. Moving attorney is to give notice.
7	Perez vs. West H&A LLC 2025-01532225 Motion to Quash Service of Summons CMC OSC re Failure to Comply with CRC 3.110(b) OSC re Failure to Appear	Defendants' Motion to Quash Service of Summons and Complaint is GRANTED. Defendant Nationstar Mortgage LLC (erroneously sued as Nationstar Mortgage, LLC) ("Nationstar") specially appears and moves under Code Civil Procedure section 418.10. Nationstar challenges the court's personal jurisdiction over it on the ground of improper service. Code of Civil Procedure, section 418.10, subdivision (a)(1), provides that a defendant may serve and file a notice of motion "[t]o quash service of summons on the ground of lack of jurisdiction of the court over him or her." "In the absence of a voluntary submission to the authority of the court, compliance with the statutes governing service of process is essential to establish that court's personal jurisdiction over a defendant. When a defendant challenges the court's personal jurisdiction on the ground of improper service of process the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service." (<i>Summers v. McClanahan</i> (2006) 140 Cal.App.4th 403, 413; see also <i>CenterPoint Energy, Inc. v. Superior Court</i> (2007) 157 Cal.App.4th 1101, 1118.) This may be shown by affidavits, declarations, or other competent evidence. (<i>CenterPoint Energy, Inc., supra</i>, 157 Cal.App.4th at 1118.) A plaintiff may serve an LLC either by the methods specified in the California Corporations Code or through methods permitted to serve corporations. (See Corps. Code § 17701.16, subd. (a) ["In addition to Chapter 4